

IN THE HIGH COURT OF PUNJAB & HARYANA AT
CHANDIGARH

2026:PHHC:087083



(125)

CWP-18882-2026 (O&M)

Date of Decision: 09.06.2026

L CONSTABLE SMESTA AND OTHERS

.....PETITIONERS

Versus

STATE OF HARYANA AND OTHERS

.....RESPONDENTS

CORAM: HON'BLE MS. JUSTICE NEERJA K. KALSON

Present: Mr. Balkar Singh, Advocate
for the petitioner.

NEERJA K. KALSON, J. (ORAL)

1. The petitioners, by way of the present petition, seek quashing of order dated 26.05.2026 (Annexure P-1) passed by respondent No.2-Director General of Police, Haryana, whereby they have been selected for admission to the Lower School Course, List-B1 for the year 2024, which is scheduled to commence w.e.f. 07.06.2026 at HPA Madhuban, whereas they have given their unwillingness to undergo the said course.

2. At the outset, learned counsel for the petitioners submits that similar controversy has already been decided by this Court on 04.09.2025 passed in **CWP No.24483 of 2025** titled **“EHC Sandeep Kumar and others versus State of Haryana and others”**, wherein it has been held that the petitioners cannot be compelled to undergo Lower School Course and thereafter, seek promotions.

3. Notice of motion.

4 Ms. Jasmine Gill, AAG, Haryana, accepts notice on behalf of the respondent-State and submits that aggrieved against the aforesaid order dated 04.09.2025 passed in *Sandeep Kumar’s case (supra)*, an intra-Court appeal bearing LPA No.122 of 2026, titled ‘*State of Haryana and others Vs. Sandeep Kumar and others*’ stood filed, wherein notice of motion has been issued, but no interim order has been passed.

5. Taking into consideration that the similar issue has already been decided in case of *Sandeep Kumar (supra)* and there is no interim order passed in intra-Court appeal bearing LPA No.122 of 2026, the present writ petition is disposed of with a direction to the respondents to re-consider the case of the petitioners for the purpose of undergoing Lower School Course-2024 in terms of *Sandeep Kumar's case (supra)*.

6. Pending miscellaneous application(s), if any, shall also stand disposed of.

(NEERJA K. KALSON)
JUDGE

09.06.2026

Atul

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| 1. | Whether speaking/reasoned | Yes/No |
| 2. | Whether reportable | Yes/No |